

23STCV28912 23STCV28912

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-02
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F02%2F2026
Source SHA-256: 6ca9a5301f021450d889bb8e0e5a6620c4f2bfdd338b62328b9d9d44083a6bcc

Case Number: 23STCV28912 Hearing Date: July 2, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

GEORGETTE SHARP, et al.,

Plaintiffs,

vs.

CLARK RESIDENCE LIMITED PARTNERSHIP, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23STCV28912

[TENTATIVE] ORDER DENYING AS MOOT MOTION
TO COMPEL DEPOSITION; GRANTING IN PART AND DENYING IN PART MOTION TO BIFURCATE

Dept. 506

8:30 a.m.

July 2, 2026

Pending
before the Court are two motions filed by Defendants.

On
March 12, 2026, Defendants filed a motion to bifurcate.

On
May 1, 2026, Defendants filed a motion to compel the deposition of third-party Anthony
Stillwell.

MOTION TO COMPEL DEPOSITION

Defendants'
late-filed declaration (dated June 30, 2026) states that the deponent did appear
for his June 26, 2026 deposition.

Accordingly,
the motion is DENIED AS MOOT.

MOTION TO BIFURCATE

The

Court may order a separate trial of any cause of action or any separate issue in furtherance of convenience or when separate trials will be conducive to expedition and economy. (Code Civ. Proc., § 1048, subd.

(b).) The Court may also order the trial of an issue to precede the trial on another issue. (Code Civ. Proc., § 598.)

Defendants

to bifurcate the trial into a liability phase and a damages phase. Defendants observe that Plaintiffs allege liability for separate units with different combinations of the allegedly inhabitable conditions. (Motion at p. 4.) According to Defendants, bifurcation is warranted

because “the remainder of the many issues are going to unit specific as well as timing specific,” “[e]ach Plaintiff has a different length of tenancy and several Plaintiffs claims are cut off due to previous lawsuits and signed settlement agreements,” and “[e]ach Plaintiff has a completely different set of alleged damages including a few with actual medical complaints which will require expert examinations and testimony and each having specific and separate property damage from their unit.” (Ibid.) But for each Plaintiff to prove liability, they

will necessarily present evidence of what the conditions are and that those conditions caused harm. That evidence will have significant overlap with evidence of the resulting damages.

At this time, the Court believes that bifurcation of liability and damages will not be conducive to expedition and economy. The motion is DENIED IN PART as to bifurcation of liability and damages.

The

exception is Defendants' request for bifurcation of punitive damages. “The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with [Civil Code] Section 3294.” (Civ. Code, § 3295, subd. (d).)

Because

bifurcation is mandatory under these circumstances, the motion is GRANTED IN PART. Punitive damages will be bifurcated.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 2nd day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court